

Jitendra Singh v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench (Chief Justice's Court) · 15 February 2024 · 2024:AHC:25940-DB · WRIT - C No. 3592 of 2024 · **Disposed; clause 6.5 representation to be decided in four weeks**

HEADNOTE

A writ seeking a decision on a representation already filed against a notice threatening disconnection for an unpaid electricity bill of Rs. 1,07,879 is disposed of by directing the competent authority to decide that dispute under clause 6.5 of the U.P. Electricity Supply Code, 2005 within four weeks, the connection not to be disconnected in the meantime if it is still live.

FACTUAL SUMMARY

Jitendra Singh filed Writ-C No. 3592 of 2024 in the Allahabad High Court against the State of U.P. and three others. Respondent no. 3 had issued a notice dated 11 April 2023 threatening to disconnect his electricity connection for non-payment of a bill of Rs. 1,07,879. He had already submitted a representation and asked the Court to direct the respondents to decide it. On 8 February 2024 the petition was passed over at his counsel's request and ordered to be listed again as fresh.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending representation against a disconnection notice

HOLDING

As the petitioner had already made a representation against the notice threatening disconnection for non-payment of the electricity bill, the respondents must decide it under clause 6.5 of the U.P. Electricity Supply Code, 2005. The petition is disposed of, and the competent authority is directed to decide the dispute under that provision within four weeks. Until the objection is decided, the electricity connection, if not already disconnected, shall not be disconnected. ¶ 2-3

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided Singh's representation against the 11 April 2023 disconnection notice was already on file, and the competent authority was required to decide it under clause 6.5 within four weeks. ¶ 2-3

6.5-pending-complaint-writ-remitted The writ, which sought only a direction to decide the pending representation, was disposed of by remitting that bill dispute to the competent authority under clause 6.5, with disconnection withheld until the objection is decided if the connection is still live. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL OF RS. 1,07,879 AND WHETHER DISCONNECTION WAS JUSTIFIED

Left to the competent authority to decide under clause 6.5 within four weeks. ¶ 2-3